

period, the funds will escheat to the State.

This case is dismissed.

20. 9:00 AM CASE NUMBER: N26-0261
CASE NAME: LOS HERMANOS LOPEZ, LLC, VS. EUN EIM
***HEARING ON MOTION IN RE: FOR NEW TRIAL**
FILED BY: EIM, EUN A.
TENTATIVE RULING:

On March 27, 2026, the date set for trial, Plaintiff Los Hermanos Lopez, LLC and Defendants Eun A. Kim, individually and dba Korean BBQ Plus appeared before this Court. Both Plaintiff and Defendants were represented by counsel. No jury fee had been paid. Over a request for a continuance by Defendants, the Court proceeded with a bench trial. The trial concluded the same day, and the Court found in favor of the Plaintiff. Defendant filed this Motion for a New Trial on April 6, 2026. The Court has received no timely opposition to this Motion. It is worth noting, however, that Plaintiff has filed paperwork for Judgment and Writ of Possession, as well as opposition to an intervening ex parte application to stay the execution of judgment. It is presumed that Plaintiff opposes this Motion, although an opposition should have been filed.

Defendants advance several reasons for a new trial. First, they argue that they were not prepared for trial because it was noticed as a jury trial. This is of no consequence, as parties are expected to be ready for the first day of trial, regardless of its format. Nothing on the docket or otherwise suggested that March 27 was to be a pre-trial conference. There was additionally no evidence on the docket that a jury fee had been posted, and Defendant would not have been able to post a jury fee as the deadline had passed. Code Civ. Pro. § 631(c)(1). The Court provided the parties an opportunity to resolve the issue by giving them time with a representative from the Congress of Neutrals. Counsel was given sufficient time to return to his office and retrieve key documents. There was simply no prejudice or irregularity.

The Court additionally heard and determined that it was not appropriate to address Defendants' unilateral attempt to offset the purported overcharges by failing to pay rent. The Court determined that this process was not a reasonable interpretation of the lease agreement. This argument was fully considered and rejected. Moreover, there was substantially evidence at trial—volunteered by Defendant herself—that the reason she stopped paying rent was that her business had insufficient funds, not that she deemed there had been an overcharge.

Finally, Defendants argue that because the Three-Day Notice contained rent due from more than one year prior (January 2025) and an erroneous amount for October 2025, it failed to comply with the strict requirements and thus the unlawful detainer proceeding was invalid. As to the first issue, Defendants cite *Bevill v. Zoura* (1994) 27 Cal.App.4th 694, 697. Defendants ignore, however, the subsequent case of *Levitz Furniture Co. v. Wingtip Communications* (2001) 86 Cal.App.4th 1035, which clarified *Bevill*. In *Levitz*, as here, there was unpaid *recent* rent but the three-day notice contained overdue rent from more than one year prior. The Court held, “[W]e see no reason why a three-day notice that demands payment of rents due within one year of the notice is automatically invalidated

because it also sets out (or demands) rent due *more* than a year before the notice. Such invalidation is not mandated by the policy underlying the second provision of section 1161(2), that is, preventing a landlord from using long overdue rent--but no rent unpaid within one year--to effect an eviction." (*Id.* at 1041.)

With respect to the second issue, this was the result of an accounting/data entry error on the part of the Plaintiff. Had Defendants tendered the amount sought, minus the October rent, they would have tendered 89% of the past-due amount. Code of Civ. Pro. § 1161.1(e).

For all practical purposes, if a tenant tenders a sum that is within 20 percent of the sum ultimately determined to be due (and pays the difference within five days of the "effective date of the judgment"), he or she will retain the right of possession. (§ 1161.1, subds. (a) & (e).) Examined in that light, section 1161.1 provides benefits to both landlords and tenants. Landlords gain a tool that, as analyzed above, is useful and appropriate in a commercial setting, where rents are not always easily fixed. Tenants gain a tool to avoid eviction, when a landlord fails to provide a "reasonable" estimate of the rent due in a three-day notice."

(*Id.*) For this commercial lease, the provisions have been satisfied.

Defendants' Motion is therefore **denied**.